

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 05/11/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
***HEARING ON MOTION IN RE: AN ORDER TO HOLD ALLISON RENEE BRACY IN CONTEMPT OF COURT**
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

Plaintiff Shiloh A. Parker ("Plaintiff") filed a Motion for an Order to Hold Allison Renee Bracy in Contempt of Court on September 29, 2025 (the "Motion for an Order regarding Contempt"). The Motion for an Order regarding Contempt was initially noticed for hearing on October 31, 2025.

Plaintiff filed a Motion for Leave to Amend Complaint on November 17, 2025 (the "Motion for Leave

to Amend”). The Motion for Leave to Amend was set for hearing on March 6, 2026. The motion sought leave to file an amended complaint to “remove the causes of action that Plaintiff dismissed and to add new factual allegations that Plaintiff recently discovered.”

Defendant Jendayi Saada (“Defendant Saada”) filed a Demurrer on December 18, 2025 (the “Demurrer”). The Demurrer was set for hearing on April 10, 2026. The Demurrer was directed at the remaining thirteenth cause of action for Defamation.

Plaintiff filed a First Amended Motion for Leave to Amend Complaint on January 8, 2026 (the “Amended Motion for Leave to Amend”). The Motion for Leave to Amend was set for hearing on May 11, 2026. Plaintiff’s Amended Motion for Leave to Amend indicates that “The proposed amended complaint reflects the recently dismissed causes of actions, adds factual allegations related to newly discovered evidence, and updates the complaint to reflect Defendant BRACYHAWKINSLAW’s new name of: BRACY LAW PC.”

Upon reassignment of the case to Department 34 in early January 2026, all of the pending motions and the Demurrer were consolidated for hearing on May 11, 2026 in Department 34. See Notice and Order of Reassignment of Case dated January 5, 2026.

Background

Plaintiff filed a First Amended Complaint (“FAC”) on August 8, 2025. Certain causes of action were thereafter dismissed from the FAC, leaving only the cause of action for “Defamation.” See Request for Dismissal filed November 10, 2025.

Thereafter, the Motion for Leave to Amend was filed on November 17, 2025, followed by the Amended Motion for Leave to Amend after the Demurrer was filed.

Analysis

1. Leave to Amend

The court has discretion “upon any terms as may be just” to allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1); see Rule 3.1324 of California Rules of Court (“CRC”); see also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 (“*Hong Sang Market, Inc.*”); see also Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 6:602 *et seq.* Leave to amend a pleading is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

The Court has considered the opposition to the request for leave to amend. See Opposition filed April 29, 2026 (“Opposition”), p. 7.

In the exercise of its discretion, the Court finds good cause to permit the requested amendment.

2. Demurrer

In light of the granting of leave to amend, the pending Demurrer is dropped from calendar. Once an amended complaint has been filed, further demurrer(s) may be raised in due course.

3. Motion for an Order regarding Contempt

While it is not clear to the Court that proper service was done and notice given in connection with the Motion for an Order regarding Contempt, an Opposition was filed by the attorney Allison R. Bracy and the named defendants.

The opposition papers, including the Declaration of Allison R. Bracy filed April 29, 2026 (“Bracy

Declaration”) address the merits of the assertions of supposed misconduct raised in the initial motion. The credible recitation of the events in the Bracy Declaration rebuts the largely second hand recitation of the supposed “callous disregard for the law” attributed to the attorney, including “kicking out” the process server and making accusations that the process server was “trespassing.” Upon review, the Court concludes that no grounds have been shown to issue an order to show cause regarding contempt or to take any further action.

4. Vexatious Litigant

The Court declines to *sua sponte* issue “an OSC to determine whether Plaintiff should be considered a vexatious litigant...” See Opposition, p. 7.

Nonetheless, the Opposition rightly points out a number of papers already filed early on in this case which fail to adhere to any proper procedural framework such as the “Notice of Material Misrepresentation by Attorney Jeffrey M. David” filed December 23, 2025, among other papers. See Opposition, pp. 10-11.

Plaintiff is ordered to refrain from filing serial papers, including “declaration(s)” or “notice(s)” not properly submitted in conjunction with ex parte applications or noticed motions or without a good faith procedural basis for the filing of such materials. THIS IS THE FIRST ADMONISHMENT AND ORDER BY THE COURT TO REFRAIN FROM SUCH CONDUCT. Failure to comply with this order and/or conduct which frustrates or obstructs such order may result in the imposition of sanctions against you, including, but not limited to, an award of attorneys’ fees and costs and/or monetary sanctions up to \$1,500 pursuant to Code of Civil Procedure section 177.5, striking of filed papers, terminating sanctions or other appropriate remedies.

Disposition

The Court further finds and orders as follows:

1. The Amended Motion for Leave to File is GRANTED. Plaintiff is granted leave to file an amended complaint herein. Such amended complaint shall be filed and served **within ten (10) days of notice of entry of this order**. The Motion for Leave to Amend is DENIED as MOOT.
2. The Demurrer is DROPPED from calendar, without prejudice, in light of the foregoing.
3. The Motion for an Order regarding Contempt is DENIED.
4. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
***HEARING ON MOTION IN RE: LEAVE TO AMEND COMPLAINT**
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

See LINE 1 above.